

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

November 26, 2018

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR – Marian J. Orr; COUNCIL MEMBERS – Rocky Case, Richard Johnson, Pete Laybourn, Mike Luna, Dr. Mark Rinne, Scott Roybal, Dicky Shanor and Jeff White. Absent: Bryan Cook. Also present: Carol Intlekofer, City Clerk, and Sylvia Hackl, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Mr. Case, and pursuant to support received by Mr. Johnson and Mr. Roybal, Agenda Item #17 was removed from the Consent Agenda. Mr. Roybal moved to approve remaining Consent Agenda items, seconded by Mr. Luna. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mr. Johnson voting “no”.

[CA] Minutes from Regular Meeting of the Governing Body on November 13, 2018. Motion (per Consent Agenda) carried.

Mr. Luna moved to approve payment of vouchers as presented, seconded by Mr. Case. Motion carried. Voting “yes” – all members of the governing body present.

ORDINANCE – 3rd READING – Pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts Established, and Section 5.1.3 Official Zoning Map, of the Unified Development Code, changing the zoning classification from County A-1 Agricultural and Rural Residential to MUR Mixed-Use Residential Emphasis for a portion of the west half, of the west half of Section 17, T14N, R66W, of the 6th Principal Meridian Cheyenne, Wyoming (located west of and adjacent to Powderhouse Road, north of Spirit Lane). Reporting for Public Services Committee, Mr. Roybal moved to approve on third and final reading, seconded by Mr. Johnson. Motion carried. Voting “yes” – all members of the governing body present. (#4249)

ORDINANCE – 2nd READING – Pursuant to Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from HR, High Density Residential to CB, Community Business for a parcel of land consisting of Lots 9 through 12, Block 9, Meadowbrooke Park Subdivision, Cheyenne, Wyoming (located at the south east corner of Edgewater Avenue and Bluegrass Circle). Mr. Roybal moved to approve on second reading, seconded by Mr. Johnson. Comment was made regarding support of local restaurants. Motion carried. Voting “yes” – all members of the governing body present.

Mayor Orr recognized Ward 3 Councilman-elect Ken Esquibel who was present at the meeting.

ORDINANCE – 2nd READING – Pursuant to Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from CB, Community Business to HR, High Density Residential for a parcel of land consisting of a portion of Lot 1, Block 1, Plaza Del Range, Second Filing Subdivision, Cheyenne, Wyoming (located at 3110 Dell Range Blvd., between Hilltop Avenue and Ridge Road). Mr. Roybal moved to approve on second reading, seconded by Mr. Johnson. Motion carried. Voting “yes” – all members of the governing body present.

ORDINANCE – 2nd READING – Amending, creating, deleting and re-creating various chapters and sections within Title 15, Buildings and Construction, of the Cheyenne City Code relating to general provisions, and including adoption of the International Building Code and other related Codes, 2018 edition. Joe Patterson, Guardian Development Companies and representative for the Southeast Wyoming Homebuilders Association (SEWBA), expressed concern with proposed removal of the fire sprinkler alternative compliance option for multi-family dwellings, and proposed changes to the energy code removing (exempting) the commissioning of HVAC equipment for new or existing buildings. During his comments, Mr. Patterson requested those SEWBA members in attendance to stand to express their support for retaining the current fire sprinkler compliance option. Upon inquiry, Mr. Patterson advised in the past Chapter 11, Energy Efficiency Code, of the IRC (International Residential Code) has been removed and substituted with the 2009 IECC (International Energy Efficiency Code), noting the proposed ordinance keeps everything the same but strikes out the HVAC commissioning, and provided information on state adoption of the 2018 International Building Code, local jurisdictional authority to adopt the IRC, and code adoptions by other jurisdictions related to fire sprinkler options vs. mandating sprinkler systems. Tom Jacobson, local real estate agent, provided information on fire statistics involving fire systems; costs to builders involving mandate of requiring a sprinkler system, which will be passed on to buyers; local housing shortage, and fire wall requirements. During discussion, Mr. Patterson and Mr. Jacobson provided information in response to inquiries regarding costs to property owners; adoption of codes by the state fire marshal vs. local jurisdiction; National Association of Homebuilders stance on a fire sprinkler system, and unknown homeowner insurance discount benefit relative to installation of a fire sprinkler system. During comments, it was clarified the proposed fire sprinkler compliance option change would apply only to multi-family dwellings. Upon inquiry, Sylvia Hackl, City Attorney, explained Wyoming Statute Section 35-9-121 which outlines the requirement by municipalities that have local authority to enforce codes to adopt, within a set time frame, minimum standards that are equivalent to or more stringent than those standards adopted by the state fire marshal, and advised local authority has been granted to the City to enforce the codes but that may revert to the state if compliance with Section 35-9-121 is not met. She noted interpretation of this section requires technical expertise from Building and Fire personnel. She further noted that both City Building and Fire Department staff are in congruence that the proposed ordinance meets minimum standards, which agreement has not always been the case in the past. Alane West, Westline Designs, Inc., spoke on the impact of requiring a fire sprinkler system in multi-family dwellings; current housing shortage, and

maintenance costs. Blas Hernandez, Chief Building Official, clarified mechanical commissioning of HVAC equipment means testing of the equipment, and explained the reason to remove the requirement was due to contractors advising him that it was an unnecessary cost. Mr. Hernandez explained the change to fire sprinkler systems would affect multi-family dwellings, not small residential houses, and reviewed the difference between the IRC and IBC (International Building Code) relative to what would be required to be sprinkled, and the difference between fire walls and a fire sprinkler system, which provides time for occupants to vacate a building in case of a fire. He expressed his support for the change, noting cost is important but the end concern is keeping people safe, and his belief that requiring a system follows the intent of the code. He commented on the possibility of looking at modified sprinkler systems as an alternative to reduce costs. Mr. Hernandez provided information in response to inquiries concerning 13R sprinkler system requirements; other communities who require a fire sprinkler system, and water supply needs depending upon the system, and confirmed that adoption of new codes is not retroactive relative to enforcement. Chief Greg Hoggatt, Fire and Rescue Department, also commented in support of requiring fire sprinkler systems in the interest of saving lives, and provided information on residential vs. commercial settings, and the effect of fire walls vs. a sprinkler system, which results in less water damage. He spoke in favor of providing a safer environment for life and protection of property, and, upon inquiry, expressed he also supports requiring residential sprinkler systems in the future. Discussion included past alternative sprinkler system option; cost to builders; potential additional costs for water taps through the Board of Public Utilities, and public education campaign to gauge interest if requiring a sprinkler system in single residential homes is contemplated in the future. Mr. Roybal reported there was no recommendation on the item from Public Services Committee. Mr. Roybal moved to approve on second reading, seconded by Mr. Johnson. Mr. Shanor moved to amend by substitute, seconded by Mr. Case. Mr. Shanor reviewed changes proposed in the substitute ordinance, which would still adopt the 2018 codes but would leave the current alternative fire sprinkler compliance option in place; reduce fees in certain sections of the ordinance relative to a Temporary Certificate of Occupancy (TOC) (i.e. sliding fee incentive) and keep the current investigation fees, relating to work commencing prior to a permit being obtained, with no fee increase. Upon inquiry Logan Sharpe, City Staff Attorney, stated staff agrees with the substitute ordinance content with the exception of keeping investigation fees at the current level. Evan Asher spoke in favor of a fire sprinkler system requirement citing the topic as a safety issue and not a cost issue. Edward Ernste suggested alternative sprinkler system options that could perhaps be considered and spoke in favor of looking at 13D options vs. 13R. Discussion topics included: Alternative fire sprinkler or fire wall options; compliance with state statute; TCO sliding scale fee incentive; IRC vs. IBC; timing of receipt of the substitute document; further legal review regarding compliance with codes adopted by the state; state code adoption date; fire inspection/enforcement authority; City Council's amendment process, and distribution of information to the public relative to the substitute document. Upon inquiry, Byron Mathews, Fire Division Chief, advised pursuant to adoption of the state codes by the state fire marshal, the City has until the end of 2018 to approve. Motion to amend carried. Voting "yes" -- Mr. Case, Mr. Luna, Mr. Roybal, Dr. Rinne, Mr. Shanor and Mr. White. Voting "no" -- Mr. Johnson, Mr. Laybourn and Mayor Orr. Main motion as amended carried. Voting "yes" -- all members of the governing present with the exception of Mr. Johnson, Mr. Laybourn and Mayor Orr voting "no".

ORDINANCE – 2nd READING – Amending, deleting and re-creating sections within Chapter 8.12, International Fire Code adopted, of Title 8, Health and Safety, of the Cheyenne City Code relating to general provisions state pertaining to fire protection and regulations, and adoption of the International Fire Code, 2018 edition, and certain Codes and practices promulgated by the National Fire Protection Association. Joe Patterson, Southeast Wyoming Homebuilders Association, requested consideration to keep the current City Code wording for Section 8.12.030 (F) in place, which pertains to alternative fire sprinkler compliance options, and referenced his comments on the topic under the previous agenda item. Mr. Patterson provided a brief history of the sprinkler compliance option as approved by the governing body in the past; discussed utilizing domestic water taps vs. Board of Public Utilities’ reasons for requiring additional water taps for sprinkler systems in multi-plex family dwellings, and suggested, in the future, consideration be given to addressing IRC and IBC related codes by separate ordinances. Chief Greg Hoggatt, Fire and Rescue Department, provided information on sprinkler systems, noting several elements are involved relative to waterflow determinations; stated he would be amenable to further discussion on sprinkler options, and indicated he would initiate a discussion with the state fire marshal with regard to 13D sprinkler options. Mr. Roybal reported there was no recommendation from Public Services Committee on the item. Mr. Roybal moved to approve on second reading, seconded by Mr. Laybourn. Mr. Shanor moved to amend by substitute, seconded by Mr. Luna. Mr. Shanor explained the amendment updates the code to the 2018 edition but allows for the alternative fire sprinkler compliance option currently existing in City Code to remain the same. Discussion topics included: Need for local affordable housing and regional front range competition, past state fire marshal acceptance of the compliance option, and past code adoptions. Motion to amend carried. Voting “yes” – Mr. Case, Mr. Luna, Mr. Roybal, Dr. Rinne, Mr. Shanor and Mr. White. Voting “no” – Mr. Johnson, Mr. Laybourn and Mayor Orr. Main motion as amended carried. Voting “yes” – all members of the governing present with the exception of Mr. Johnson, Mr. Laybourn and Mayor Orr voting “no”.

Following a brief recess, Mayor Orr reconvened the meeting at 8:30 p.m.

ORDINANCE – 2nd READING – Amending Chapter 2.32, Fire Department, Section 2.32.020, Department Personnel, and Chapter 2.84, Miscellaneous Boards and Commissions, Section 2.84.050, International Fire Code Board of Appeals, of Title 2, Administration and Personnel, of the Cheyenne City Code pertaining to the Fire and Rescue Department. Mr. Roybal moved to approve on second reading, seconded by Mr. Case. Motion carried. Voting “yes” – all members of the governing body present.

ORDINANCE – 2nd READING – Creating Section 1.08.030, Official Song-Recognition and Use, of Chapter 1.08, Official Seal and Emblem, of Title 1, General Provisions, of the Code of the City of Cheyenne, Wyoming, pertaining to designation of ‘Cheyenne Anthem’ (©2018) as the official song of the City of Cheyenne. Scott Meyer, speaking on behalf of AAI Music Publishing and the songwriters, spoke in support of the ordinance and commented on proposed changes to combine wording in Sections (B) and (C), suggesting that wording be retained regarding promotion through advertising, marketing and tourism and by adding the word “education”. Upon inquiry, Mr. Meyer explained fundraising was done to assist with expenses to go to Nashville to professionally record the song and the artists paid for some expenses out of their own pocket. Mr. Roybal moved to approve on second reading, seconded by Mr. White. Mr.

Roybal moved to amend by combining Sections (B) and (C) into a new Section (B) to read as follows, seconded by Dr. Rinne: The City shall have non-exclusive gratis rights to use the entire song or any portion thereof, the name of the song, for any and all official City commercial and/or non-commercial uses including merchandise, and by relabeling Section (D) to Section (C). Discussion followed on amending the ordinance per Mr. Meyer's suggestion, and whether a conflict existed with the name of the song and permission had been obtained relative to graphic images affiliated with a correlating video. During comment on whether a conflict existed or permission was received for graphic images, Mr. Shanor raised a point of order that comments were not germane to the ordinance as the ordinance does not address the topics with Mayor Orr concurring. Further discussion included who would be responsible for enforcement of the copyright. Motion to amend carried. Voting "yes" – all members of the governing body present with the exception of Mr. Johnson voting "no". Mr. Shanor moved to amend revised Section (B) to read as follows, seconded by Mr. Luna: The City shall have non-exclusive gratis right to use the entire song or any portion thereof, the name of the song, for any and all official City commercial and/or non-commercial uses including, but not limited to, merchandise, promotion, advertising, marketing, tourism and education, and by striking the words "and C" in revised Section (C). For clarification, it was noted if anything is disputed in the future between the City and those owning the rights to the song regarding whether the City's use follows the specified uses outlined in the ordinance, it would require negotiation between the parties. Motion to amend carried. Voting "yes" – all members of the governing body present with the exception of Mr. Johnson voting "no". Main motion as twice amended carried. Voting "yes" – all members of the governing body present with the exception of Mr. Johnson voting "no".

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for the Clear Creek Industrial Park Subdivision, a replat of a portion of Block 10, Lots 1 and 12 of Block 11 and Lots 1 and 17 of Block 12, Interior Heights Addition, and portions of adjacent streets and alleys thereto, situated in the SW1/4 of Section 6, Township 13N, Range 66W, of the 6th P.M., Cheyenne, Laramie County, Wyoming (located at the northeast corner of Arp Avenue and Van Tassell Court, east of S. Parsley Blvd.). Motion (per Consent Agenda) carried. (#5958)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Aspen Creek, a plat of a portion of the west half, of the west half of Section 17, T14N, R66W, of the 6th Principal Meridian, Laramie County, Wyoming (located west of and adjacent to Powderhouse Road, north of Spirit Lane). Motion (per Consent Agenda) carried. (#5959)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Swan Ranch Rail Park, Fifteenth Filing, a plat of a portion of the northwest one-quarter of Section 27, Township 13 North, Range 67 West of the Sixth Principal Meridian, Cheyenne, Laramie County, Wyoming (located east of Berwick Drive, north of Tundra Drive). Motion (per Consent Agenda) carried. (#5960)

RESOLUTION – Declaring as surplus a City-owned property legally described as Lot 1, Block 1, Clear Creek Subdivision, 1st Filing; Lot 2, Block 1, Clear Creek Subdivision, 1st Filing; and Lot 1, Block 1, Clear Creek Subdivision, 2nd Filing together with improvements thereon, Cheyenne, Laramie County, Wyoming, and authorizing the City's Purchasing Manager to proceed

with the sale of said parcel pursuant to Wyo. Stat. §15-1-112. Vicki Nemecek, Director of Public Works, stated the resolution was in response to interest expressed by a potential party to acquire the property from the City; shared her knowledge of what use the interested party may have for the parcels, and explained sales proceeds would go toward parks development and the City's bid process would be utilized for sale of the property. Upon inquiry, Ms. Nemecek provided information on City easements that may be requested; referenced information she had provided governing body members on access to the Belvoir Ranch relative to the property, and commented on current property development agreements that were in place. Ron Downey, City Treasurer, explained prior development fees that had been paid were deposited into a parks fund and pursuant to the development agreements if the City sells the property, proceeds need to go back into the parks fund. During discussion it was clarified that anyone interested would be eligible to submit a bid to acquire the property, not just the interested party (i.e. Dyna Nobel) who made the initial inquiry. Reporting for Finance Committee, Mr. White moved to adopt, seconded by Mr. Luna. Discussion topics included: Hesitancy to sell the property due to potential use as public access to the Belvoir Ranch; Belvoir Ranch Master Plan; including any easement requirements as part of the RFP (Request for Proposal) bid document, and further legal research on any specific easement descriptions. Mr. Case moved to postpone to December 10, 2018, seconded by Dr. Rinne. Comment was made in support of postponement to further discuss allowable uses from property sale proceeds. Motion to postpone carried. Voting "yes" – all members of the governing body present with the exception of Mr. White voting "no".

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for the Plaza Del Range, Third Filing Subdivision, a replat of Lot 1, Block 1, Plaza Del Range, Second Filing Subdivision, and Block 4 of the Frontier Gardens Subdivision, and a portion of the alley adjacent to Block 4, Frontier Gardens Subdivision, situated in Cheyenne, Laramie County, Wyoming (located at the northeast corner of Hilltop Avenue and Dell Range Boulevard) – referred to Public Services Committee. (Sponsor – Mr. Roybal)

[CA] RESOLUTION – Authorizing the City Treasurer to discharge uncollectible debts in the amount of \$49,973.60 pursuant to Wyo. Stat. §16-4-502 – referred to Finance Committee. (Sponsor – Mr. White)

[CA] RESOLUTION – Authorizing the City of Cheyenne to accept as a gift a parcel of real property from Cheyenne Ice and Events Center, Limited Partnership – referred to Public Services Committee. (Sponsor – Mr. Roybal)

CFD Park N Ride Planned Unit Development Preliminary Plan for a portion of the SE1/4, Section 11 and the NE1/4, Section 14, T13N, R67W, of the 6th P.M., Laramie County, Wyoming (located east of and adjacent to I-25, north of College Drive). Mr. Roybal moved to acknowledge the Planning Commission's recommendation to approve with Planning Commission recommendations #1, 2, & 3 and by adding a 4th recommendation which reads as follows, seconded by Mr. Shanor: The applicant, City staff and County staff work together to find solutions to mitigate any negative impacts to adjacent property owners from this proposed development. Discussion included impact to the area, traffic flow, road infrastructure improvements needed in the vicinity; new site for Cheyenne Frontier Days event overflow parking due to the past site no

longer being available to CFD, and impact of the CFD annual event on other residential and commercial areas. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mr. Johnson and Mr. Luna voting “no”.

[CA] Professional Services Agreement between the City of Cheyenne and Russell + Mills Studios, Fort Collins, Colorado, for the North Cheyenne Community Park Masterplan. Motion (per Consent Agenda) carried (amount not to exceed \$46,050.00). (#6926)

[CA] Grant Award Agreement between the City of Cheyenne and the State of Wyoming Office of Homeland Security for a grant from the U.S. Department of Homeland Security, FEMA, Grant Programs Directorate, State Homeland Security Program Grant Fiscal Year 2018 for the Cheyenne Regional Emergency Response Team #7 (DHS Grant). Motion (per Consent Agenda) carried. (#6927)

[CA] Professional Services Agreement between the City of Cheyenne and Burns & McDonnell Engineering Company, Bloomington, Minnesota, for the City of Cheyenne Integrated Solid Waste Plan. Motion (per Consent Agenda) carried (amount not to exceed \$274,700.00). (#6928)

[CA] Grant Agreement between the City of Cheyenne, Transit Division, and the Wyoming Department of Health, Aging Division, to provide support services to persons 60 years or older under Title III-B Program Grant for FY19 (grant funds). Motion (per Consent Agenda) carried. (#6929)

[CA] Professional Services Agreement between the City of Cheyenne, Public Works Department, and Asbestos & Technical Services, Cheyenne, Wyoming, for abatement services (2011 - 2014 1% Sales Tax) – referred to Finance Committee.

[CA] Amendment No. 1 to City Contract No. 5902, Wind Energy Lease Agreement between the City of Cheyenne and Cheyenne Wind, LLC, to amend the property description – referred to Finance Committee.

[CA] Amendment No. 3 to City Contract No. 3911 between the City of Cheyenne and Bresnan Communications, LLC, L/K/A Charter Communications, to extend the contract term – referred to Finance Committee.

[CA] Renewal of City Contract No. 4989 between the City of Cheyenne and Cheyenne Pipeline LLC, to allow limited use of the public right-of-way for petroleum pipeline purposes (revenue to City) – referred to Finance Committee.

[CA] Amendment No. 1 to Professional Services Contract No. 6627 between the City of Cheyenne, on behalf of the Cheyenne Metropolitan Planning Organization, and AVI Professional Corporation, for the Whitney Road 10% Corridor Plan (MPO funds) – referred to Finance Committee.

[CA] Consideration of Bid #E-9-19 for furnishing three new mowers for the Parks Division (2015 – 2018 1% Sales Tax). Motion (per Consent Agenda) carried (accepted bid submitted by L.L. Johnson Dist. Co., Denver, Colorado, in an amount not to exceed \$106,720.00).

[CA] Consideration of Bid #S-7-19 for a contract between the City of Cheyenne, Community Recreation and Events Department, and A To Z Recreation, Littleton, Colorado, for the Fitness Course at Lions Park Project (Rec Mill Levy Grant). Motion (per Consent Agenda) carried (amount not to exceed \$139,910.00). (#6930)

[CA] Special malt beverage permit application filed with the City Clerk's Office for The City of Cheyenne d/b/a City of Cheyenne – Civic Center, 510 W. 20th St., Cheyenne, Wyoming. Motion (per Consent Agenda) carried.

Appointment of Elisa Maggio to the Cheyenne Downtown Development Authority Board. Alane West, President, DDA Board, introduced Elisa Maggio and advised Ms. Maggio would be filling a Board member vacancy. Mr. Roybal moved to approve, seconded by Mr. Shanor. Motion carried. Voting "yes" – all members of the governing body present with the exception of Mayor Orr who did not vote (Mayoral appointment).

Under other business:

Fire Chief Greg Hoggatt commented on the local firefighters holiday bike drive project to donate bicycles to children in need, and invited everyone to attend the donation event on December 19th.

Jeff Dierksen, stating he was speaking on behalf of the Pinto Lane neighborhood, commented on speeding concerns in the neighborhood that he has previously presented to the governing body, and communications he has had with WYDOT staff. He distributed and discussed copies of WYDOT rules and regulations, state statute and Federal Highway Administration (FHWA) information pertaining to the setting of speed limits (on file with the City Clerk's office). He further discussed past neighborhood traffic studies and his belief there has been a discrepancy in the interpretation of traffic study percentiles relative to determining an appropriate speed limit for the area. Mr. Dierksen reviewed his previous requests to lower the speed limit or incorporate the use of speed tables on Pinto Lane and provided information in response to inquiries from governing body members. Mr. Shanor requested staff review information at the top of Page 20 of the FHWA information provided by Mr. Dierksen pertaining to the section beginning with "... If at least one of the following is true ...", and Mr. Laybourn requested City Engineer staff review whether there was any prohibition on the use of speed tables within the City. Upon inquiry during discussion and comments, Vicki Nemecek, Director of Public Works, and Amy Allen, City Engineer, provided information on past speed limits on Pinto Lane, and staff expertise available to evaluate appropriate speed limits and use of speed tables.

There being no further business to come before the governing body, the meeting was officially adjourned at 9:43 p.m.

Submitted by,

Carol Intlekofer
City Clerk

This notice is available in alternative, accessible formats upon request.

Published: Wyoming Tribune-Eagle
December 8, 2018